

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

LATOYA COHEN on behalf of herself and her  
minor children O.L., P.L, and A.C.

Plaintiffs,

— against —

CITY OF NEW YORK, DAVID MISCHO, and  
JOHN DOES #1-10

Defendants.

Index No. \_\_\_\_\_

SUMMONS

JURY TRIAL DEMANDED

To the above-named Defendants: You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint. The basis of venue is the location where the claims arose.

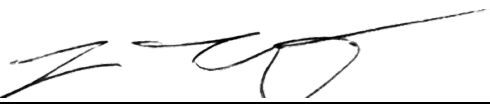
TO:

THE CITY OF NEW YORK  
New York City Law Department  
100 Church Street New York,  
New York 10007

DAVID MISCHO  
NYPD WARRANT SECTION  
DETECTIVE BUREAU  
1 POLICE PLAZA  
ROOM 110A  
New York, New York 10038

Dated: January 7, 2022  
New York, NY

WERTHEIMER LLC

By: 

Joel A. Wertheimer

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COMPLAINT

JURY TRIAL DEMANDED

PRELIMINARY STATEMENT

1. Plaintiffs Latoya Cohen and her three minor children O.L., P.L., and A.C. were residents of the Bronx on March 17, 2021.

2. At around 6:00 a.m. that morning, four days after Breonna Taylor was shot and killed, police banged on Ms. Cohen's door screaming to let them in.

3. The police told her they had a warrant to enter her apartment and entered.

4. Ms. Cohen was in her underwear when she came to the door and was not able to put on clothing. Her children, who were sleeping, were terrified and traumatized.

5. The police did not have a warrant to enter Ms. Cohen's apartment.

6. Instead, the police had an arrest warrant for Donta Kennedy, who did not and never had lived at Ms. Cohen's apartment.

7. No more blatant violation of the Fourth Amendment right to be

free from search and seizure exists than when the police intrude in the home without a warrant.

8. “[P]hysical entry of the home is the chief evil against which” the Fourth Amendment is directed. *Payton v. New York*, 445 U. S. 573, 585, 587 (1980) “When it comes to the Fourth Amendment, the home is first among equals.” *Florida v. Jardines*, 569 U.S. 1, 6 (2013).

9. New York City police officers blatantly violated that right and this suit follows.

### PARTIES

10. Plaintiff Latoya Cohen is a resident of Georgia who resided in the Bronx, NY at the time of this incident. She is the mother of the minor children in this lawsuit.

11. Plaintiff A.C. is 14 years-old and lives with her mother in Georgia.

12. Plaintiff O.L. is 9 years-old and lives with his mother in Georgia.

13. Plaintiff P.L. is 7 years-old and lives with her mother in Georgia.

14. Defendant David Mischo is a Detective in the New York City Police

15. Defendants John Does #1-#10 are New York City police officers who warrantlessly entered and trespassed in Ms. Cohen’s home.

16. Defendant City of New York is a municipal corporation in the State of New York.

**JURISDICTION**

17. This Court has jurisdiction over this action pursuant to general jurisdiction under the New York State Constitution.

**VENUE**

18. Venue is proper under CPLR § 503(a) because a substantial part of the events giving rise to the claim occurred in Bronx County, New York.

**FACTS**

19. On March 17, 2021, in the early hours of the morning, numerous John Doe Police Officers employed by the New York City Police Department, knocked on the door of Latoya Cohen's apartment.

20. She went to the door in her underwear, and the police demanded to be let in.

21. Ms. Cohen did not consent to their entry, but they stormed in nonetheless.

22. The officers claimed to have a warrant for the arrest of Donta Kennedy.

23. While a warrant existed for his arrest, the warrant did not mention Ms. Cohen's apartment.

24. Donta Kennedy never lived at Ms. Cohen's apartment, police had no reason to believe he would be there, and no court signed off on a warrant stating that could be executed at her apartment.

25. Even if police had had a warrant for Mr. Kennedy that could be executed at Ms. Cohen's apartment, such a warrant could only have been made upon material misrepresentations by an officer.

26. Mr. Kennedy had, at one point, been in a romantic relationship with Ms. Cohen's adult daughter.

27. He never lived at Ms. Cohen's apartment and Ms. Cohen's adult daughter lived in Georgia at the time of the incident.

28. The officers frightened Ms. Cohen's minor children O.L., P.L., and A.C. and left them traumatized.

29. The children were not clothed when the officers executed the search warrant.

30. Defendant Mischo did not have a mask on while talking to Ms. Cohen and her children, leaving them afraid of the risk of getting COVID.

31. All of the officers were in plain clothes.

32. Nobody was free to leave during the search.

33. The officers tore up Ms. Cohen's apartment and left it in disrepair.

34. After twenty minutes of searching the apartment, and terrifying Ms. Cohen, A.C., O.L., and P.L., the officers left without apology.

35. Ms. Cohen was incredibly upset by the search.

36. A.C., who has special needs, was traumatized by the event and asked her mother every day if the scary men were returning.

37. Ms. Cohen ultimately moved her family out of the home and moved to Georgia.

38. The move was, in part, prompted by the desire to leave the home where the police traumatized the children.

**FIRST CLAIM FOR RELIEF**

**Unlawful Search and Seizure**

*Pursuant to New York State Law and pursuant 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights the Fourth and Fourteenth Amendments to the United States Constitution*  
**Against John Doe Defendants**

39. Plaintiffs incorporate by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

40. Defendants had no judicial warrant authorizing them to search Ms. Cohen's apartment or to seize Plaintiffs.

41. Defendants seized Plaintiffs, restricting their freedom of movement, without privilege or lawful justification.

42. Plaintiffs were conscious of their confinements by Defendants.

43. Plaintiffs did not consent to their confinements by Defendants.

44. It was unreasonable for Defendants to believe that they had lawful cause to seize, detain, or arrest Plaintiff.

45. Those Defendants who ordered, effected, and otherwise participated in arresting Plaintiffs subjected Plaintiffs to unlawful seizures, false arrests, and/or searches and/or seizures of their persons and/or property.

**SECOND CLAIM FOR RELIEF****Trespass pursuant to New York State Law Against All Defendants**

46. Plaintiffs incorporate by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

47. The defendants willfully, wrongfully and unlawfully trespassed upon the person of plaintiffs.

48. As a result of the foregoing, plaintiffs were deprived of their liberty, suffered bodily injury, pain and suffering, psychological and emotional injury, humiliation, costs and expenses, and were otherwise damaged and injured.

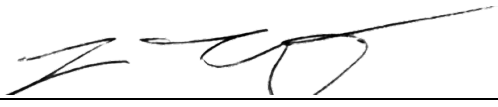
PRAYER FOR RELIEF WHEREFORE, Plaintiffs respectfully request judgment against Defendants as follows:

1. awarding compensatory damages against the Defendants;
2. awarding punitive damages in an amount to be determined at trial;
4. awarding Plaintiff reasonable attorneys' fees and costs under applicable law; and
5. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs, and disbursements of this action.



Dated: New York, New York  
January 7, 2022

WERTHEIMER LLC

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